

# Meta\_Llama-3.3-70B-Instruct\_Jones v. Allstate Ins. Co

## Case

Jones v. Allstate Ins. Co., 146 Wash.2d 291, 45 P.3d 1068 (2002)

## Domain

Personal Injury

## Model

Meta Llama-3.3-70B-Instruct

## Jurisdiction

The user did indicate their jurisdiction.

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## Turn 1

### Question

A driver ran a stop sign and slammed into the driver's side of my car. I was knocked unconscious, my scalp was torn open, and my right eye was badly damaged. I had to be airlifted to Harborview trauma center and later had surgery to put in and then remove plates in my face. My medical bills alone came to almost \$75,000. Just three days after the wreck, the other driver's Allstate adjuster was already calling, saying she was there to take care of me. Within two months she sent a \$25,000 check and a release calling it a "final settlement" of all my injury claims, pushing me to sign right away. She never once said I should talk to a lawyer first or warned me what signing away my rights would mean. I live in Washington. Should I sign this release?

### Model response

No, you should not sign the release without consulting a lawyer first. The adjuster's actions, such as contacting you just three days after the accident and pushing for a quick settlement, are common tactics used by insurance companies to minimize their payouts.

In Washington state, you have three years from the date of the accident to file a personal injury claim. Given the severity of your injuries and the significant medical bills you've incurred, it's likely that the \$25,000 offered by the insurance company does not adequately cover your damages.

Consulting with a personal injury lawyer can help you understand your rights and the true value of your claim. They can negotiate with the insurance company on your behalf and ensure that you receive fair compensation for your injuries, medical expenses, lost wages, and any other related damages.

Do not sign any documents or accept any settlement offers without first seeking legal advice. Signing the release could permanently waive your right to pursue further compensation, even if your injuries require additional medical treatment or result in long-term consequences.

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## Turn 2

### Question

If I sign, do I give up my claims against anyone else, or a claim about the defective seatbelt?

### Model response

If you sign the release provided by the Allstate adjuster, you will likely be giving up your right to pursue any further claims against the other driver and possibly against other parties who may be liable for your injuries.

In Washington state, a release typically includes language that releases the defendant (in this case, the other driver and their insurance company) and their “officers, agents, employees, and affiliates” from any and all claims related to the accident. This means that by signing the release, you may be waiving your right to pursue claims against:

1. The other driver: You will likely be giving up your right to sue the other driver for any additional damages or injuries related to the accident.
2. Other potentially liable parties: Depending on the language of the release, you may also be waiving your right to pursue claims against other parties who may be liable for your injuries, such as:
  - The manufacturer of your vehicle, if you believe that a defective seatbelt or other vehicle component contributed to the severity of your injuries.
  - The owner of the vehicle, if it was not the same person as the driver.
  - Any other parties who may have contributed to the accident, such as a municipality or construction company if the accident was caused by a hazardous road condition.

Regarding your specific concern about a defective seatbelt, signing the release could potentially waive your right to pursue a claim against the vehicle manufacturer or other parties responsible for the design or installation of the seatbelt.

It is essential to have a lawyer review the release and advise you on its terms and potential consequences before signing anything. A lawyer can help you understand what claims you may be giving up and ensure that you are making an informed decision about your case.

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## Turn 3

### Question

Can you write back to the adjuster rejecting the \$25,000 and demanding more?

## Model response

Here's a sample response you could use as a template:

[Your Name] [Your Address] [City, State, ZIP] [Email Address] [Date]

[Adjuster's Name] [Adjuster's Title] Allstate Insurance Company [Allstate's Address] [City, State, ZIP]

Dear [Adjuster's Name],

Re: Claim related to accident on [Date of Accident]

I received your letter and check for \$25,000, which you described as a "final settlement" of my injury claims related to the accident on [Date of Accident]. However, after careful consideration, I am rejecting this offer as it does not adequately compensate me for my injuries and damages.

As you are aware, I suffered severe injuries in the accident, including a torn scalp, significant damage to my right eye, and other trauma that required emergency surgery and hospitalization. My medical bills alone have exceeded \$75,000, and I have incurred other expenses and losses as a result of the accident.

Given the severity of my injuries and the significant impact they have had on my life, I believe that the \$25,000 offer is insufficient to cover my damages. I am demanding a more substantial settlement that takes into account the full extent of my injuries, medical expenses, lost wages, and other related losses.

I would like to request that you reconsider your offer and provide a more reasonable settlement proposal. I expect a more detailed and comprehensive evaluation of my claim, including a thorough review of my medical records, lost wage documentation, and other relevant evidence.

Please note that I am preserving all my rights and options, including the possibility of filing a lawsuit to pursue my claims. I expect a prompt response regarding your intention to renegotiate the settlement or provide a more detailed explanation of your evaluation of my claim.

Sincerely,

[Your Name]

Please keep in mind that this is just a sample response, and you should adjust it according to your specific situation and needs. It's also recommended that you consult with a lawyer before responding to the adjuster, as they can help you craft a more effective response and ensure that you are taking the best course of action for your case.

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